



Charles Hwang <[REDACTED]>

Clarification Request on CCROV #26099 and CEC § 3015(a)

Delucchi, Rachelle <rdelucch@sos.ca.gov>

Thu, May 7, 2026 at 10:08 AM

To: "[REDACTED]" <[REDACTED]>

Cc: "Anderson, Robbie" <aanderso@sos.ca.gov>

Hello Charles,

Thank you for reaching out with your questions regarding [CCROV # 26099](#).

Specifically, you asked about the meaning of a voter who is "unable to surrender" their vote-by-mail ballot, on page 3 of the memo. This means a voter who does not have their ballot to surrender; therefore they are unable to surrender it.

With respect to your second question about voters who are "able" to surrender their VBM ballot but are not asked for it and/or are unwilling/decline to surrender - if they are to be permitted to vote a nonprovisional ballot. That will depend on the county's ability to be able to: verify that the voter has not returned their voted VBM ballot and notate the voter's voter record to ensure that the voter's VBM ballot is not cast or tabulated after they vote at the polls. If the county cannot do this, the voter should be given a provisional ballot.

Best regards,

Rachelle C. Delucchi

Elections Counsel

Legal Affairs Office

California Secretary of State

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Shirley N. Weber, Ph.D.
California Secretary of State

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From: Charles Hwang <[REDACTED]>

Sent: Thursday, May 7, 2026 2:13 AM

To: Delucchi, Rachelle <rdelucch@sos.ca.gov>; Anderson, Robbie <aanderso@sos.ca.gov>

Subject: Re: Clarification Request on CCROV #26099 and CEC § 3015(a)

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Hello Rachelle and Robbie,

I hope this email finds you well. I just wanted to follow up on my email from last week, are answers to my questions available?

Best,

Charles Hwang

On Thu, Apr 30, 2026 at 1:35 AM Charles Hwang <[REDACTED]> wrote:

Hello Rachelle and Robbie,

I hope this email finds you well. Your email addresses are listed as points of contact in the final paragraph of County Clerk/Registrar of Voters (CC/ROV) [Memorandum # 26099](#).

The Memorandum and California Elections Code [Section 3015\(a\)](#) state voters shall be permitted to vote a nonprovisional ballot if they are "unable" to surrender their VBM ballot, and I was wondering if there is clarification available regarding the specific meaning and interpretation of "unable" in this context. Is this referring to not having their VBM ballot in their possession to surrender, not being physically able to surrender their VBM ballot, or something else?

Also, can you please confirm voters who are "able" to surrender their VBM ballot but are not asked for it and/or are unwilling/decline to surrender it shall also be permitted to vote a nonprovisional ballot (given they have not returned their voted VBM ballot and their voter record is notated to ensure their VBM ballot is not cast or tabulated after they vote at the polls)?

Best,

Charles Hwang